

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Jonathan Phillips               | Team:<br>Team # 7                   | CCRB Case #:<br>200810241 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 07/15/2008 11:00 PM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>1/15/2010   | Precinct:<br>122                                      |                                    |                                 |
| Date/Time CV Reported<br>Thu, 07/17/2008 4:44 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 07/17/2008 4:44 PM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Joseph Metsopulos | 05821  | 937101 | 122 PCT |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM Gary Morris         | 04452     | 899629 | 122 PCT  |
| 2. POM Christoph Palazzola | 25701     | 941099 | 122 PCT  |
| 3. SGT Joseph Memoly       | 01826     | 903173 | 122 PCT  |

| Officer(s)                | Allegation                                                                        | Investigator Recommendation |
|---------------------------|-----------------------------------------------------------------------------------|-----------------------------|
| A . POM Joseph Metsopulos | Abuse: PO Joseph Metsopulos stopped § 87(2)(b)                                    | A . Exonerated              |
| B . POM Joseph Metsopulos | Abuse: PO Joseph Metsopulos searched the car in which § 87(2)(b) was an occupant. | B . Unsubstantiated         |
| C . POM Joseph Metsopulos | Abuse: PO Joseph Metsopulos searched § 87(2)(b)                                   | C . Unsubstantiated         |

## Synopsis

At approximately 10:15 PM on July 15, 2008, § 87(2)(b) was getting into his brother's white Ford Explorer in the vicinity of § 87(2)(b) in Staten Island when an unmarked Chevy Impala pulled up alongside him. Two officers, identified by the CCRB as Sergeant Joseph Memoly and PO Joseph Metsopulos, exited their RMP and approached § 87(2)(b) inquiring about § 87(2)(b)'s connection with the vehicle and purpose for being in the area (**Allegations A**). § 87(2)(b) continued to allege that PO Metsopulos, without having gained his permission, entered § 87(2)(b)'s vehicle and conducted a search of the console, glove compartment, and floor, in pursuit of identification linking § 87(2)(b) to the vehicle (**Allegation B**). § 87(2)(b) further alleged that PO Metsopulos, after failing to find anything inside the vehicle, conducted a search of § 87(2)(b) physically entering his pockets and extracting a bag of tobacco (**Allegation C**).

§ 87(2)(g) it is recommended that **Allegations A** be **exonerated**. § 87(2)(g) As such, it is recommended that **Allegations B** and **C** be **unsubstantiated**.

This case was originally assigned to Investigator Sheila Donovan, but upon her resignation from the CCRB, was reassigned to Investigator Jonathan Phillips on October 2, 2008.

## Summary of Complaint

### **Initial CCRB Complaint (Encl. 3A-B)**

§ 87(2)(b) filed a complaint with an investigator at the CCRB on July 17, 2008. § 87(2)(g)

### **§ 87(2)(b)'s CCRB Statement (Encl. 4A-D)**

§ 87(2)(b) was interviewed at the CCRB on August 11, 2008. § 87(2)(b) is a § 87(2)(b) Hispanic male who § 87(2)(b). § 87(2)(b) has brown hair and brown eyes.

On July 15, 2008 at approximately 10:00 PM, § 87(2)(b) walked out of his building with his friend in order to smoke a cigarette for approximately thirty minutes before the two drove to Staten Island Ferry in order to pick up § 87(2)(b)'s brother. § 87(2)(b) had been inside his building at § 87(2)(b) and came out with his friend, a retired NYPD MOS who wished to remain anonymous and not get involved in this complaint. At some point, a woman exited the building and talked to the two individuals for about five minutes before getting in a car and driving away with another female.

Eventually § 87(2)(b) got into the driver's side of his brother's truck, a white Explorer, and unlocked the passenger's side door. § 87(2)(b)'s friend had a bag of groceries with him that he put between his legs after he entered the vehicle from the passenger's side. About twenty seconds after getting into his truck, § 87(2)(b) remembered that he had forgotten his license in his car which was parked across the street. Suddenly, an unmarked black Chevy Impala pulled up alongside § 87(2)(b)'s truck and stopped directly adjacent to the driver's side door. § 87(2)(b) then exited his truck and was subsequently confronted by two officers who had exited their RMP in response to § 87(2)(b).

An officer, identified by the CCRB as PO Joseph Metsopulos, exited the Chevy Impala from the driver's side and told § 87(2)(b) in an angry tone to put his hands on the fender of the Ford Explorer. PO Metsopulos, still speaking in an angry tone, asked § 87(2)(b) what he had just thrown into the vehicle. PO Metsopulos was standing about a foot away from § 87(2)(b) when he issued these instructions to him. In response, § 87(2)(b) told PO Metsopulos that he had not thrown anything into the truck. Incredulous, PO Metsopulos asked, "Why are you lying?" § 87(2)(b) told him that he was not lying. PO Metsopulos then questioned § 87(2)(b) why he was getting nervous and scared. PO Metsopulos grabbed § 87(2)(b)'s shirt by the chest, got behind him and put his weight into § 87(2)(b) pushing § 87(2)(b)'s body into the fender of the

vehicle. PO Metsopolus's groin was against § 87(2)(b)'s backside. § 87(2)(b) thought that this was inappropriate.

After PO Metsopolus pushed § 87(2)(b) into the fender of his vehicle, § 87(2)(b) offered to get his driver's license out of his car while he explained that he was on his way to pick his brother up. At that point, § 87(2)(b)'s friend identified himself as a former MOS and told PO Metsopolus to leave § 87(2)(b) alone because he had done nothing wrong. In response, the other officer identified by the CCRB as Sergeant Memoly, told § 87(2)(b)'s friend, "Let my partner do what he's doing."

Without having gained § 87(2)(b)'s to do so, PO Metsopolus entered the Ford Explorer after § 87(2)(b) stated that his paperwork and brother's registration for the vehicle were in the glove compartment. PO Metsopolus entered the truck from the passenger's side and searched inside the glove compartment, the middle console, and underneath the seats in pursuit of § 87(2)(b)'s paperwork. However, PO Metsopolus *did* find keys in the truck and insinuated that the keys were what he had observed § 87(2)(b) throw into the truck. At this time § 87(2)(b)'s friend was standing at the front left headlight.

After searching the vehicle, PO Metsopolus exited the vehicle and conducted a search of § 87(2)(b) physically entering § 87(2)(b)'s two front pockets. PO Metsopolus pulled out some napkins and a package of Bugle tobacco, which he presented to Sgt. Memoly. PO Metsopolus proceeded to take down § 87(2)(b)'s name and date of birth. § 87(2)(b)'s friend asked the officers if they had gotten a call but the officers provided no reason for stopping them. The officers did not go back to their vehicle at any time during the incident.

## **Results of Investigation**

### **Officer Interviews**

#### **PO Joseph Metsopolus's CCRB Statement (Encl. 7A-C)**

PO Joseph Metsopolus was interviewed at the CCRB on November 7, 2008. He is a Caucasian male who § 87(2)(b). PO Metsopolus has black hair and brown eyes. On July 15, 2008, PO Metsopolus was assigned to the Anti-Crime Unit between the hours of 5:30 PM and 2:05 AM. PO Metsopolus was working in plain clothes and was assigned to an unmarked vehicle #1030.

On July 15, 2008, at approximately 11:00 PM in the vicinity of § 87(2)(b) in Staten Island, PO Metsopolus was sitting in the passenger's seat of his moving unmarked vehicle which was positioned across the street about 10-20 feet away, when he observed a male, identified by the CCRB as § 87(2)(b) leaning into a vehicle for several minutes without getting into the vehicle; the driver's side door of the vehicle was open. PO Metsopolus did not observe § 87(2)(b) throw anything through the vehicle's window. PO Metsopolus had raised suspicions that § 87(2)(b) was engaging in some sort of dubious activity or perhaps even breaking into the vehicle with some sort of tool. It seemed suspicious to PO Metsopolus that § 87(2)(b) would stand outside his vehicle for an extended period of time without getting into the vehicle and driving away. However, PO Metsopolus did not recall for how long he observed § 87(2)(b) standing outside his vehicle.

PO Metsopolus approached § 87(2)(b) and identified himself as a police officer. PO Metsopolus requested that § 87(2)(b) present identification for the vehicle. In response, § 87(2)(b) stated that he did not have either insurance information or vehicle registration, further contributing to PO Metsopolus's suspicions. PO Metsopolus was unsure whether § 87(2)(b) produced any documentation identifying himself. PO Metsopolus did not recall § 87(2)(b) giving any indication that the identification may have been located elsewhere. § 87(2)(b) began getting nervous.

Because PO Metsopolus suspected something amiss, he frisked § 87(2)(b)'s waistband in pursuit of a tool that § 87(2)(b) may have potentially used as a weapon against PO Metsopolus. PO Metsopolus did not recall whether his frisk of § 87(2)(b) extended beyond the waistband but claimed that it lasted for only a matter of seconds. PO Metsopolus denied physically penetrating the pockets of § 87(2)(b) and also

denied observing any bulges protruding out of § 87(2)(b)'s pockets. Additionally, PO Metsopulos denied requesting that § 87(2)(b) empty his pockets. PO Metsopulos did not remember what verbal commands he issued to § 87(2)(b). PO Metsopulos did not recall if he conducted a search of the vehicle. PO Metsopulos did not recall observing any damage to the vehicle.

PO Metsopulos did not have any interaction with any other civilians nearby; however, there was another individual with § 87(2)(b) who identified himself as a former MOS. PO Metsopulos did not recall what his partner was doing during this incident. PO Metsopulos requested this individual's identification but did not frisk him.

**Sergeant Joseph Memoly's CCRB Statement (Encl. 12A-B)**

Sergeant Joseph Memoly was interviewed at the CCRB on March 13, 2009. Sergeant Memoly is a Caucasian male who § 87(2)(b). Sergeant Memoly has brown hair and blue eyes. On July 15, 2008, Sergeant Memoly was assigned to Anti-Crime within the confines of the 122<sup>nd</sup> Precinct with his partner, PO Joseph Metsopulos, between the hours of 500 PM and 147 AM. Sergeant Memoly was working in plain clothes and was operating RMP #1030. Sergeant Memoly does not have any memo book (Encl. 11A-B) entries in connection with this incident.

At approximately 1100 PM on July 15, 2008, Sergeant Memoly and PO Metsopulos were patrolling the 122<sup>nd</sup> Precinct in the vicinity of § 87(2)(b) in Staten Island when they observed an individual, identified by the CCRB as § 87(2)(b) standing outside a vehicle who appeared to be acting suspiciously. The area proximate to the South Beach Housing projects is historically a high crime area prone to grand larceny and drug transactions. In addition, there was another male standing on the sidewalk who appeared to be acting as a lookout. Having suspicions that something was awry and that a possible auto theft could be occurring, Sergeant Memoly and PO Metsopulos decided to stop their vehicle and investigate the situation.

Sergeant Memoly advanced towards the unidentified individual on the sidewalk while PO Metsopulos addressed § 87(2)(b) who was still standing next to the parked vehicle. Sergeant Memoly continued to request that the anonymous individual on the sidewalk present his identification, to which he did while he also identified himself as a former MOS. Sergeant Memoly proceeded to explain the purpose of the stop, to which the individual on the sidewalk acknowledged cordially that he understood and continued to conduct himself in a compliant manner. PO Metsopulos, on the other hand, requested that § 87(2)(b) produce identification linking him to the vehicle. Sergeant Memoly observed PO Metsopulos conduct a frisk of § 87(2)(b) patting him down but failing to physically place his hands into § 87(2)(b)'s garments. Sergeant Memoly denied seeing any physical force used on § 87(2)(b).

In addition, Sergeant Memoly also noticed PO Metsopulos peak into vehicle, confirming that there was no damage to either the vehicle's interior or exterior. However, Sergeant Memoly denied observing PO Metsopulos physically break the plane of the door and search the interior of the vehicle. Sergeant Memoly also denied observing PO Metsopulos touch anything inside the vehicle. Although the door to the vehicle was open, Sergeant Memoly denied opening the door himself or observing PO Metsopulos open the door to the vehicle. It was Sergeant Memoly's understanding that the door to the vehicle was already open before the officers pulled over to approach and inquire about the situation. Following the confirmation of § 87(2)(b)'s connection to the automobile, Sergeant Memoly shook hands with both § 87(2)(b) and the former MOS. Sergeant Memoly described the transaction as smooth and relatively cordial. The entire stop lasted approximately ten minutes. Sergeant Memoly described § 87(2)(b)'s demeanor as compliant and calm.

**PO Gary Morris's CCRB Statement (Encl. 8A-B)**

PO Gary Morris was interviewed at the CCRB on February 25, 2009. PO Morris is a Caucasian male who § 87(2)(b). PO Morris has brown hair and blue eyes. PO Morris does not have any memo book entries regarding this incident. On July 15, 2008, PO Morris was assigned to Anti-Crime between the hours of 6:00 PM and 2:00 AM. PO Morris was working in plain clothes and was assigned to an unmarked sedan with his partner, PO Christopher Palazzola.

Regarding the events that transpired at approximately 11:00 PM on July 15, 2008 in the vicinity of § 87(2)(b) in Staten Island, PO Morris denied having recollection. When presented with a photograph of § 87(2)(b) PO Morris denied recognizing the individual and also denied having any memory of interacting with § 87(2)(b) aroused. PO Morris failed to recall conducting a stop of an individual driving a white Ford Explorer.

**PO Christopher Palazzola's CCRB Statement (Encl. 10A-B)**

PO Christopher Palazzola was interviewed at the CCRB on March 4, 2009. PO Palazzola is a Caucasian male who § 87(2)(b). PO Palazzola has brown hair and brown eyes. On July 15, 2008, PO Palazzola was assigned to Anti-Crime within the confines of the 122<sup>nd</sup> Precinct with his partner, PO Gary Morris. PO Palazzola was working in uniform between the hours of 5:30 PM and 2:05 AM. PO Palazzola has no memo book (Encl. 9A-B) entries in regards to this incident.

In regards to the events that transpired on July 15, 2008, PO Palazzola has no recollection of what occurred. When presented with a photograph of § 87(2)(b) PO Palazzola denied recognizing the individual and denied any memory of interacting with § 87(2)(b) aroused. PO Palazzola denied recalling conducting a vehicle stop of a white Ford Explorer in the vicinity of § 87(2)(b) in Staten Island on July 15, 2008. However, PO Palazzola stated that he is in fact familiar with the area proximate to § 87(2)(b) and further stated that the area is a high crime area prone to drug transactions.

**NYPD Documents**

**UF250 #§ 87(2)(b) (Encl. 6A)**

The Stop, Question & Frisk report generated in regards to this incident by PO Metsopulos indicates that he conducted a stop and a frisk of § 87(2)(b) at § 87(2)(b) in Staten Island at 10:15 PM. PO Metsopulos has noted that § 87(2)(b) was engaging in actions indicative of acting as a lookout as the reason leading to the stop. Further noted, PO Metsopulos has noted that § 87(2)(b) was providing evasive, false, and/or inconsistent responses to his questions. As a basis for conducting the frisk of § 87(2)(b) PO Metsopulos has noted that § 87(2)(b) was refusing to comply with PO Metsopulos directions. PO Metsopulos also has noted that the particular location of the stop has previously been an area with high incidences of reported offenses. The UF250 report had no indication that a search was conducted by PO Metsopulos.

**122<sup>nd</sup> Precinct Roll Call (13A-J)**

The Roll Call from the 122<sup>nd</sup> Precinct on July 15, 2008 (Tour 3) indicates that PO Joseph Metsopulos, PO Gary Morris, and PO Christopher Palazzola were all assigned to Anti-Crime between the hours of 5:30 PM and 2:05 AM. Roll Call also indicates that Sergeant Joseph Memoly was assigned as the Anti-Crime Supervisor between 5:26 PM and 2:10 AM. However, Roll Call fails to designate which officers were working together and which RMP each officer was assigned to.

**§ 87(2)(b)'s CCRB History (Encl. 2A)**

§ 87(2)(b) has not previously filed any complaints against NYPD officers at the CCRB. § 87(2)(g)

**PO Joseph Metsopulos's CCRB History (Encl. 1A)**

The Board has not substantiated any previous CCRB allegations made against PO Metsopulos.

**Sgt. Joseph Memoly's CCRB History (Encl. 2A)**

In connection with CCRB case number 200300872, Sergeant Memoly received disciplinary instructions for the substantiated allegation of supervising the frisks of both § 87(2)(b) and § 87(2)(b).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

## Conclusions and Recommendations

### **Officer Identification**

§ 87(2)(b) described the officer who allegedly stopped him, frisked him, and searched his vehicle as a “short, stocky Caucasian male with dark hair.” § 87(2)(b) also described the second officer on scene as a “tall, slim Caucasian male with dark hair.” § 87(2)(g)

§ 87(2)(b). PO Metsopulos stands 5’7” and weighs 200 pounds, attributes that qualify more as “short and stocky” when compared to the dimensions of Sgt. Memoly, who § 87(2)(b) more apt attributes that qualify as a “tall and slim” description. Additionally, PO Metsopulos freely admitted to frisking § 87(2)(b) on said date, a fact that is corroborated through the UF250 report prepared by PO Metsopulos. § 87(2)(g)

### **Undisputed Facts**

It is undisputed that PO Metsopulos, along with Sgt. Memoly, stopped § 87(2)(b) on July 15, 2008.

### **Disputed Facts**

§ 87(2)(g)

### **Assessment of Evidence**

§ 87(2)(g)

§ 87(2)(g)

## Allegations

### Allegations Not Pleaded

§ 87(2)(g)

Although PO Metsopulos freely admitted that he frisked § 87(2)(b) a fact confirmed by UF250 § 87(2)(b) § 87(2)(b) alleged that PO Metsopulos conducted a full-blown search. § 87(2)(g) Kamins has noted in the following:

“The general rule regarding frisks is that an officer must have reasonable suspicion to believe a suspect has committed a crime and a reasonable suspicion that the suspect is armed and dangerous. Courts have noted two exceptions to this rule. Under the first exception, a frisk is permitted in the absence of a specific, articulated danger to the police officer when an officer stops a suspect because he reasonably believes the individual committed a violent crime...” (*Encl. LG1*)

§ 87(2)(g)

### Allegation A: Abuse of Authority: PO Joseph Metsopulos stopped § 87(2)(b)

Patrol Guide Procedure 212-11 (*Encl. PG1*) permits an officer to stop a person and request identification and an explanation for conduct when he [the officer] “reasonably suspects a person has committed, is committing or is about to commit a felony or a Penal Law misdemeanor.” § 87(2)(g)

As such, it is recommended that **Allegations A exonerated** § 87(2)(g)

### Allegation B: Abuse of Authority: PO Joseph Metsopulos searched the car in which § 87(2)(b) was an occupant

§ 87(2)(g)

As such, it is recommended that **Allegation B be unsubstantiated.**

### Allegation C: Abuse of Authority: PO Joseph Metsopulos searched § 87(2)(b)

As delineated above, PO Metsopulos maintained that he simply conducted a frisk of § 87(2)(b) failing to physically penetrate § 87(2)(b) s pockets. § 87(2)(g)

As such, it is recommended that **Allegation C be unsubstantiated.**

Investigator: Jonathan Phillips

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: